Topic 23 — Constitutional & Legal Offices

Covers syllabus (click to expand)

Attorney General (महान्यायवादी) | Solicitor General | Advocate General (महाधिवक्ता) | Comptroller & Auditor General | Chief Election Commissioner | Election Commissioners | UPSC (संघ लोक सेवा आयोग) Chairman | State PSC Chairman | Chief Justice of India | Chief Justice of High Court | Oath & Affirmation | Resignation articles (the ten + President / VP / Governor / PM / CM / Speakers) **Study dimensions (every office):** Appointment · Removal · Qualification · Tenure · Powers · Articles · Oath · Resign-to-whom

Sources baked in: Arts. 124, 217, 219, 315–323, 324(5), 3rd Schedule, CEC Act 2023, UPPCS PYQs 2018–2025 **Weight:** ★★★ — CEC removed **like SC judge**, other ECs **only on CEC's recommendation**; SPSC member removed by **President after SC inquiry** (2021); SC judge resigns to **President** (2023); UPSC functions **four sources** (2024); JPSC = **Parliament if States request** (2022) **Last verified:** August 2026 **Current Affairs:** CEC Act **2023** panel = PM + LoP LS + Cabinet Minister — **CJI not on it**; term 6y/65; pay ~ Cabinet Secretary not SC judge

Current Affairs (what the year actually tests)

Newest first. One event, one fact.

Year	What happened	What you mark
2023	**CEC Act**: selection = PM + LoP LS + Cabinet Minister (कैबिनेट मंत्री)	**CJI not on the panel** (*Anoop Baranwal* had put CJI there *until a law*)
2023	SC judge resignation paper	Address = **President**, not CJI
2023	Paper asks AG qualify-as-SC-judge **and** impeachment	Only qualify is true. **Pleasure**, not 124(4)
2022	JPSC how created	**Parliament**, if the States request
2022	CAG (भारत के नियंत्रक-महालेखापरीक्षक) report examined by?	**PAC** (लोक लेखा समिति), not Estimates (प्राकलन समिति), not "COPU for everything"
2021	SPSC member removal	**President** after **SC** inquiry — not Governor, not HC
2021	First CEC / first woman CEC	**Sukumar Sen** · **Ramadevi 1990**
2021	UPPSC (उत्तर प्रदेश लोक सेवा आयोग) functions extended by	**UP Legislature** (321), not President
2020	AG matched to Part XIII	**Wrong.** Part **V**
2024	Body–article "correctly matched"	**ECI ≠ 165**. 165 = AdvG. ECI = **324**
2024	CAG in a match-list	**148** (with 266 / 280 / 360)

Year	What happened	What you mark
2023	324 / 315 / 280 / 338 match	EC / PSC / FC / NCSC (राष्ट्रीय अनुसूचित जाति आयोग)
2018	CJI when PIL “introduced”	**P.N. Bhagwati** (colour). epistolary / continuing mandamus (परमादेश)
1976	Accounts compilation taken off CAG	CAG = **auditor only** (2019)
1971	CAG DPC Act	Duties live in **statute**, Art. 149

Sitting (बैठक) AG / CAG / SG names are **CA colour** — don’t raata a 2026 occupant as if he were Art. 76.

Frame

Law officers, auditor, CEC/ECs, PSC chairs, two Chief Justices — each as an **office** (appoint / remove / qualify / tenure / oath / resign). Each card is appoint / remove / oath / resign. **SG is the only one of the ten not in the text.**

Attorney General of India (Art. 76)

First law officer of the Union. Qualified to be an SC judge. Holds office during pleasure of the President. Part **V** (not XIII).

- **Article:76** (office) · **88** (Houses) · **105** privileges while performing
- **Appointment:President**. Qualification: same as a **Supreme Court judge** (Art. **124**): citizen + 5y HC judge / 10y HC advocate / distinguished jurist
- **Tenure:none fixed** in the text. **Removal:pleasure of the President**. **Not** the SC-judge impeachment path
- **Resignation:** to the **President**. **Oath:not** a Third Schedule form
- **Powers:** advise GoI on legal matters the President refers · appear for the Union in SC/HC · **right of audience in all Indian courts** (76(3)) · other duties the President assigns / law confers · **Contempt of Courts Act s.15** — AG’s (or SG’s) consent is used for some criminal-contempt motions; that does **not** make him a judge
- **Parliament:** Art. **88** — take part in **both** Houses and their committees; **no vote**. **Not** a minister / Cabinet member by this office
- **Practice:not** a government servant. Private briefs **OK** except **against the Government of India** / in a matter he has advised on
- **Pay:** fixed by the **President**. **Not** 2nd Schedule / not CFI-charged as a judge/CAG
- **First:M.C. Setalvad**. Assisted by **Solicitor General** → Additional SGs → ASGs — those rungs are **not** Art. 76

> **Logic:** AG qualifies as an **SC** judge but is **not** removed like one. Pleasure, not impeachment. Not a

> minister. Not Part XIII.

PYQ — UPPCS Prelims 2023, Q12

Attorney General: (1) must be qualified to be an SC judge (2) removed by the same process as SC judges A. Only 1 B. Only 2 C. Both D. Neither

Show answer

Ans: A — Only 1. Pleasure of the President. Impeachment is the **judge / CAG** story, not AG.

PYQ — UPPCS Prelims 2020, Q110

NOT correctly matched: Attorney General of India — Part XIII **Ans: that pair.** AG = **Part V**. Part XIII = trade (पण्याध्यक्ष), commerce, intercourse.

Trap: AG is a minister. **No.** Trap: AG must be an MP. **No** (and if separately elected, office-of-profit issues). Trap: AG cannot enter a secret sitting — the House *may* ask him to withdraw; that does not make him a member.

Solicitor General of India

Not a constitutional office. Second law officer of the Union. The paper's favourite "which of the following is not mentioned in the Constitution".

- **Article:none.** Art. 76 names the **Attorney General** only
- **Appointment:** Union Government / President on government advice (executive). Law Officers (Conditions of Service) rules — don't freeze a clause number
- **Rank:second** law officer. Below AG, above Additional Solicitors General
- **Qualification:** not written in the Constitution (there is no 76-clone). In practice a senior advocate; **not** "must be SC-judge qualified" as a *text* fact
- **Tenure / removal:** contract / pleasure of the government. **No** impeachment. **No Article 148(4) bar**
- **Oath:not** Third Schedule. **Parliament:no Art. 88.** Cannot speak in the Houses *by virtue of this office*
- Appears for the Union; assists and often de facto leads Union litigation under the AG

Additional Solicitor General / ASG = further executive rungs. Same trap: **not** constitutional.

There is **no "Advocate General of India."** Union = AG + SG. State = Advocate General.

> **Logic:** SG is **not** in Article 76. SG has **no** Art. 88 right to address Parliament.

Advocate General of the State (Art. 165)

First law officer of the State. Mirror of AG, one rank of court down. Qualified to be an **HC** judge. Holds office during pleasure of the **Governor**.

- **Article:165** (office) · **177** (State House(s))
- **Appointment:Governor**. Qualification: same as a **High Court judge** (Art. **217**): citizen + **10y** judicial office **or10y** HC advocate. **No "distinguished jurist"** limb (that limb is SC-only)
- **Tenure:none fixed**. **Removal:pleasure of the Governor**. Not HC-judge impeachment
- **Resignation:** to the **Governor**. **Oath:not** Third Schedule
- **Powers:** advise the State government · appear in courts **in the State** · duties the Governor assigns
- **Legislature:** Art. **177** — speak in the State Assembly / Council and committees; **no vote**
- **Practice:** private briefs OK except **against the State**. Pay: Governor determines
- Assisted by Additional / Deputy Advocates General — **executive**, not 165

UP colour: UP Advocate General ≠ UP **Accountant General** (CAG's field) ≠ **UPPSC** Chairman.

> **Logic:** AdvG qualifies as an **HC** judge, not SC. Pleasure of the Governor, not impeachment. Art. **177** in the Vidhan Sabha (विधानसभा), not Art. 88.

Comptroller and Auditor General (नियंत्रक-महालेखापरीक्षक) (Arts. 148–151)

Constitutional auditor for Union and States. The "Comptroller" in the name is **UK history (इतिहास)** — India does **not** let him block a payment before it is made. Removed **like an SC judge**, not pleasure.

- **Article:148** office · **149** duties as Parliament by law · **150** form of accounts · **151** reports
- **Appointment:President** (warrant under his hand and seal (मुद्रा), **148(1)**). Qualification **not** written as "SC-judge qualify" (unlike AG). Conditions = **law** (DPC Act 1971)
- **Tenure:6 years or 65**, whichever is earlier
- **Removal:like a Supreme Court judge** (address of both Houses, special majority, proved misbehaviour/incapacity) — **not** pleasure
- **Resignation:** to the **President**. **Oath:Third Schedule**, before the **President** (same form-family as SC judges)
- **Further office:** Art. **148(4)** — **not eligible** for further **Union or State** office. No minister may instruct him; he is **not** a PAC member
- **Pay:Second Schedule**; **charged** on CFI; not varied to his disadvantage after appointment
- **Powers:** audit Union **and** State accounts (CFI, Contingency Fund (आकस्मिकता निधि), Public Account (लोक लेखा), financed bodies as the 1971 Act says). **Three audits**: financial · compliance · performance
- **Reports:** Union → **President** → Parliament. State → **Governor** → State legislature. Examined by **PAC** (civil). **COPU** = PSU slice. **Estimates Committee has no CAG**
- **Law:CAG's (Duties, Powers and Conditions of Service) Act, 1971**
- **First (independent India):V. Narahari Rao**. Accounting split from audit **1976** — Indian CAG is auditor only (2019 PYQ)
- **Field:Accountant General** in a State = CAG's officer. **≠ Advocate General**

> **Logic:** CAG ≠ pleasure (that is AG). Indian CAG **audits after** spend; UK Comptroller can **block** first.

> Accountant General ≠ Advocate General.

PYQ — UPPCS Prelims 2022, Q55

The audit report of the CAG is examined by— A. Public Accounts Committee B. COPU C. Estimates Committee D. None

Show answer

Ans: A — PAC. COPU only the PSU slice. Estimates = **no** CAG. PAC examines CAG; Estimates has no CAG.

Trap: CAG holds office during the President's pleasure. **No — SC-judge removal.** Trap: CAG is a PAC member. **Attends; is not a member.** Trap: Indian CAG pre-sanctions spend like the UK Comptroller. **Post-audit.**

Office snapshot — law officers & CAG

Office	Appoints	Qualify as	Removal	Oath	Resign to	Further office
AG	President	**SC judge**	**Pleasure**	not 3rd Sch.	President	not barred by 76
SG	Executive	(no Art.)	Pleasure / contract	not 3rd Sch.	Government	not 148(4)
AdvG	Governor	**HC judge**	**Pleasure**	not 3rd Sch.	Governor	not 148(4)
CAG	President	(law, not 76-clone)	**Like SC judge**	**3rd Sch. / President**	President	**148(4) barred**

CEC · PSC chairs · Chief Justices

This cluster is the **office**: who appoints, who removes, oath, resigns-to-whom. CEC ≠ other ECs on removal. UPSC functions come from **four** (चातुर्याम) sources (Constitution + laws + rules + conventions). SC Collegium = CJI+4.

Chief Election Commissioner & Election Commissioners (Art. 324)

Constitutional election authority — CEC + such other ECs as the President may fix. **Equal vote, unequal removal.**

Dimension	CEC	Other ECs
Article	**324** — CEC + such other ECs as the President may fix	Same Commission; **equal vote** in decisions
Appointment	**President**. *Anoop Baranwal* **2023**: until a law, panel = PM + LoP + **CJI**. Then **CEC and Other ECs Act, 2023**: **Search** Committee = **Cabinet Secretary + 2 Secretaries** (shortlist **5**). **Selection** Committee = **PM (chair) + LoP in LS + a Union Cabinet Minister**. **CJI is not on the 2023 panel** (contrast **Lokpal** (लोकपाल): CJI *is* on that panel)	Same 2023 Act
Tenure	**6 years or 65** (2023 Act)	Same
Removal	**Like an SC judge** (324(5))	**Not** removed except on **CEC's recommendation**
Resignation	To the **President**	To the **President**
Oath	**Not** a Third Schedule named form	Same
Pay (2023 Act)	Aligned with **Cabinet Secretary**, not SC judge	Same
Conditions	Not varied to disadvantage after appointment	—

> **Logic:** CEC removed **like SC judge**. Other ECs **only on CEC's recommendation**. 2023 panel has **no CJI** (Lokpal panel **has** the CJI).

Firsts: First CEC = **Sukumar Sen** (1950; first GE 1951–52). First woman CEC = **V.S. Ramadevi / Rama Devi, 1990** (short). **T.N. Seshan** = MCC muscle, not first.

Composition memory: 1950–89 one · Oct 1989 three · Jan 1990 one · **Oct 1993 three** (durable). Majority among CEC+ECs. **Vote equal, removal not equal.Regional Commissioners** (324): optional. If appointed, removed only on **CEC's recommendation** — same shield-gap as other ECs.

2023 Act extra: an **EC may be appointed CEC**; combined tenure in both offices ≤ **6 years**. CEC is **not** re-appointed as CEC.

≠ State Election Commissioner (Arts. **243K / 243ZA**) — local bodies. Different office, different remover (usually like an HC judge under State law).

ECI does **not** elect Speaker / run municipal polls / decide those disputes. President/VP *election disputes* = Art. **71** SC, not ECI.

Article trap: "Election Commission — Art. **165**" is **wrong**. **165 = Advocate General.** ECI = **324**.

PYQ — UPPCS Prelims 2021, Q91

1. Sukumar Sen was the first CEC.
2. Rama Devi was the first woman CEC. **Both true.**

Trap: other ECs enjoy the same removal shield as the CEC. **No.** Trap: 2023 Act put the CJI on the selection panel. **Took the CJI off.**

UPSC Chairman (Arts. 315–323)

Chair of the Union Public Service Commission (संघ लोक सेवा आयोग). Appointed by the **President**. Tenure **6 years or 65**. Art. **319 — no further Union or State office at all**.

- **Article:315–323**. Chair is one member of the Commission the President appoints (**316**)
- **Qualification:** no AG-style "SC-judge" clause. **As nearly as one-half** of *members* shall have held Union/State office ≥ **10 years**
- **Removal (317):** President. On **misbehaviour**: must refer to the **Supreme Court**; SC inquires; President removes if SC so reports. **Without** SC: insolvency, paid outside job, infirmity of mind/body. President may **suspend** meanwhile. **Acting Chair (316):** President may appoint a member to act
- **Resignation:** to the **President** (316). Oath not a 3rd Schedule *named* form
- **Report:** to the **President** → Parliament. Government must explain non-acceptance of advice. Expenses **charged** (322)

UPSC *functions from Constitution + laws + executive rules + conventions*. Lineage: Lee Commission 1924 / Ross Barker. UPSC ≠ SSC ≠ CAPF (सीएपीएफ) board.

> **Logic:** UPSC Chair = **total 319 bar**. UPSC member may become UPSC **Chair** or an **SPSC Chair**.

Art. 319 — next job (write all four)

Ceases to be	May later be	May not
UPSC Chairman	—	**Any** further Union **or** State office
UPSC member	UPSC **Chair** or an **SPSC Chair**	Other Union/State office
SPSC Chairman	UPSC Chair **or** Chair of **another** SPSC	Other Union/State office
SPSC member	UPSC Chair / UPSC member / SPSC Chair (same or another)	Other Union/State office

Trap: UPSC Chair is removed by the PM. **President + SC inquiry.** Trap: UPSC Chair may become a State Governor (राज्यपाल). **319 bars it.**

State PSC Chairman

Chair of a State Public Service Commission (राज्य लोक सेवा आयोग).Governor appoints and receives the resignation; **President** removes. Tenure **6 years or 62**.

- **Removal (317):President — not** the Governor. Same SC-inquiry path on misbehaviour

- **Extend functions (321):State Legislature**, not the President / PM
- **Report:Governor** → State House(s)
- **Further office (319):** SPSC **Chairman** may later be **UPSC Chair** or Chair of **another** SPSC — not other Union/State office
- **JPSC:** two+ States **request** → **Parliament** by law. Appoint/remove = **PresidentUP:UPPSC**, HQ **Prayagraj**. ≠ UPSC (Delhi) ≠ UP **SEC** (local polls).

> **Logic:** Three different authorities for SPSC: **appoint Governor · remove President · extend Legislature**. UPSC retires at **65**; SPSC at **62**.

PYQ — UPPCS Prelims 2021, Q81

A member of a State PSC may be removed by— A. Governor on Vidhan Sabha impeachment B. Governor after SC enquiry C. President after SC enquiry D. Governor after HC enquiry

Show answer

Ans: C. Appoint = Governor. Remove = **President**. Enquire = **Supreme Court**, not the High Court.

PYQ — UPPCS Prelims 2021, Q133

UPPSC functions can be extended by— **Uttar Pradesh (उत्तर प्रदेश) State Legislature** (Art. 321).

PYQ — UPPCS Prelims 2022, Q24

A Joint PSC for two or more States can be established by— **Parliament, if requested by the concerned States.**

Three different authorities for SPSC: **appoint Governor · remove President · extend Legislature**.

Chief Justice of India (Art. 124)

Head of the Supreme Court. Appointed by the **President**. Sits until **65**. Oath before the **President**; resigns to the **President**.

- **Article:124** (office of SC / CJI). SC established 1950; Federal Court 1937
- **Appointment:** convention = **senior-most** SC judge. Text: consultation (CJI always consulted for a *judge other than* the CJI). SC Collegium **CJI+4**
- **Qualification:** same as any SC judge: citizen + 5y HC judge / 10y HC advocate / **distinguished jurist**
- **Removal:** Art. **124(4)–(5)** — proved misbehaviour/incapacity, both Houses special majority (Judges Inquiry Act). **Never used to completion**
- **Oath:3rd Schedule**, before the **President** (or person he appoints). Art. **60**: *President's* oath is administered **by the CJI** — do not reverse that
- **Acting CJI (126):** President; convention = senior-most available SC judge. Pay charged; 2nd Schedule family

> **Logic:** SC judge / CJI resigns to the **President**, not to "the CJI". Art. 60 is the **President's** oath, *administered by* the CJI.

Seniority broken twice:1973 A.N. Ray (post-*Kesavananda* (केशवानंद भारती 1973)) · **1977 M.H. Beg** (superseded **H.R. Khanna**). Restored **1978 (Y.V. Chandrachud)**.

PIL colour: PIL as a *system* is tagged to **P.N. Bhagwati** as CJI — office colour, not a 124 clause. PIL = epistolary jurisdiction; tagged to P.N. Bhagwati.

Acting President: if President and VP are both vacant, the **CJI** (then the senior-most SC judge) discharges Presidential functions — **President (Discharge of Functions) Act, 1969**. He then takes the **Art. 60** oath, not a second 3rd-Schedule judges' oath.

Trap: CJI resigns to the Law Minister / to the next senior judge. **President.** Trap: CJI oath is Art. 60. **Art. 60 is the President's oath, administered *by* the CJI** — unless the CJI himself is *acting* President.

Chief Justice of a High Court (Arts. 216–223)

Head of a High Court. Appointed by the **President**. Sits until **62**. Oath before the **Governor**; resigns to the **President**.

- **Article:216** (CJ + other judges) · **217** appointment/tenure · **219** oath · **223** acting CJ
- **Appointment:** consulting **CJI + Governor** (and the HC's CJ if appointing a *judge* other than the CJ). Collegium: **CJI + 2**. Convention: HC **CJ is an outsider** (transferred)
- **Qualification:** same as HC judge: citizen + **10y** judicial office **or10y** HC advocate. **No distinguished jurist**
- **Tenure:** until **62** (15th Amd raised 60→62). 114th Bill to 65 **lapsed**
- **Removal:** same as SC judge (218 → 124(4))
- **Acting CJ (223):** President; usually senior-most judge of that HC
- **Transfer (222):** President after consulting CJI. Judge's consent **not** required
- **Officers (229):** appointed by the **Chief Justice** of that HC

> **Logic:** HC CJ oath = **Governor**. Resign = **President**. Age **62**, not 65.

Oath & Affirmation (master)

Who swears what, before whom. 3rd Schedule has ministers, House candidates/members, SC/HC judges, CAG — **not** President / VP / Governor / AG / SG / AdvG / CEC.

- **President** — Art. **60**, **not** 3rd Sch. Before the **CJI** (or senior-most SC judge)
- **Vice-President** — Art. **69**, **not** 3rd Sch. Before the **President**
- **Governor** — Art. **159**, **not** 3rd Sch. Before the **Chief Justice of that State's High Court** (or senior-most HC judge)

- **Union/State Ministers, MP/MLA candidates & members, SC/HC judges, CAG — Third Schedule.** Judges/CAG: **President** (SC) or **Governor** (HC). Ministers: 3rd Sch. has **oath of office** *and* **oath of secrecy** — two forms, not one
- **AG / SG / AdvG / CEC / EC / UPSC–SPSC — not** 3rd Sch. named forms

Article raata (all ten + cousins): AG **76** (+ **88**) · SG **none** · AdvG **165** (+ **177**) · CAG **148–151** · CEC / EC **324** · UPSC / SPSC Chair **315–323** (**319** next-job) · CJI **124** (acting **126**) · CJ HC **216–217** (oath **219**, acting **223**) · President / VP / Governor oaths **60 / 69 / 159** — not 3rd Sch. · SEC (not this ten) **243K / 243ZA**.

> **Logic:** President's oath ≠ 3rd Schedule. CJI *administers* Art. 60; CJI *takes* a 3rd Schedule oath before the President. **ECI ≠ 165.**

Resignation articles (master)

Resign-to-whom is the paper. SC/HC/CJI/CJ/CAG/CEC/UPSC → President. SPSC member/AdvG → Governor. HC oath ≠ HC resign.

- SC judge / **CJI** → **President** (**124**)
- HC judge / **CJ HC** → **President** (**217**) — oath was Governor
- **CAG** → **President** (**148**) · **CEC / EC** → **President** (324 / 2023 Act) · **UPSC Chair / member** → **President** (**316**)
- **SPSC Chair / member** → **Governor** (**316**) · **AG** → **President** (pleasure) · **AdvG** → **Governor** (pleasure)
- **SG** → government / President as the warrant runs (no Article)

Wider constitutional offices - President → **Vice-President** (**56(1)(a)**) · **Vice-President** → **President** (**67(a)**) · **Governor** → **President** (**156**) - **PM** → **President** (convention, Art. 75) · **CM** → **Governor** (convention, Art. 164) - **Speaker, LS** → **Deputy Speaker** (**94**) · **Deputy Speaker, LS** → **Speaker** (**94**) - **Speaker, LA** → **Deputy Speaker** (**179**) · **Deputy Speaker, LA** → **Speaker** (**179**) - **Deputy Chairman, RS** → **Chairman** (the VP) (**90**) · **Chairman, Legislative Council** → **Deputy Chairman** (**183**) - **CJI acting as President** vacates that acting role when a President is elected (**1969 Act** — not a 124 resignation)

> **Logic:** President resigns to the **VP**, not the CJI/PM. Governor resigns to the **President**, not the CM. LS Speaker resigns to the **Deputy Speaker**, not the President. RS Chairman **is the VP** → President (**67**).

Office snapshot — CEC / PSC / Chief Justices

Office	Appoints	Age / term	Removal	Oath before	Resign to
CEC	President (2023 panel **sans CJI**)	6y / **65**	**Like SC judge**	not 3rd Sch.	President

Office	Appoints	Age / term	Removal	Oath before	Resign to
Other EC	same	6y / 65	**CEC's recommendation**	not 3rd Sch.	President
UPSC Chair	President	6y / **65**	President after **SC** inquiry	not 3rd Sch.	President
SPSC Chair	**Governor**	6y / **62**	**President** after SC inquiry	not 3rd Sch.	**Governor**
CJI	President	**65**	124(4)	**President**	**President**
CJ HC	President	**62**	124(4) via 218	**Governor**	**President**

Mains link (one frame)

Law officers **advise**; CAG **audits**; CEC **conducts**; PSC **recruits**; Chief Justices **head courts**. Removal is the paper: **AG/AdvG = pleasure**; **CAG/CEC/CJI = judge-like**; **other ECs = CEC's recommendation**; **SPSC = President after SC**. Close with: **President resigns to VP, not to CJI**; **RS Chairman ≠ LS Speaker on resignation**; **ECI = 324 not 165**; **CJI is on the Lokpal panel, not the 2023 CEC panel**; **319 Chair ≠ 319 member**; **no Advocate General of India**.